

23SMCV03956 23SMCV03956

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CO%2C07%2F08%2F2026

Source SHA-256: 1385c3cf35a8c51b8219553d0c9a20be1538f8084fc06dfda85377636c40eb49

Case Number: 23SMCV03956 Hearing Date: July 8, 2026 Dept: O

TENTATIVE RULING

July 8, 2026

23SMCV03956 (Stewart v. City
of Santa Monica, et. al.)

RELEVANT BACKGROUND

This is a personal injury case arising from a bicycle accident in Santa Monica. On August 23, 2023, plaintiff Christopher Stewart (Plaintiff) filed his Complaint alleging a single cause of action for dangerous condition of public property against the City of Santa Monica (the City), the County of Los Angeles (the County), and Does 1-100. Plaintiff subsequently dismissed the County without prejudice. On January 10, 2024, Plaintiff filed amendments to the Complaint identifying Doe #1 as IMS Infrastructure Management Services, LP (IMS) and Doe #2 as Nichols Consulting Engineers, Chtd. (Nichols).

On February 6, 2026, the Court granted the motions for summary judgment filed by IMS and Nichols and denied Plaintiff's motion for leave to file an amended complaint.

On September 26, 2022, Plaintiff was riding his bicycle on Pier Avenue, Santa Monica, California. (UMF 1.) Plaintiff fell from his bicycle at about 518 Pier Avenue, Santa Monica, California. (Id. 2.) Plaintiff does not remember the incident or fall from his

bicycle or at what location on Pier Avenue he fell. (Id. 3.) Plaintiff does not remember what caused him to the fall from his bicycle on Pier Avenue. (Id. 4.) Plaintiff testified that, when he rode his bicycle, he focused on where he was going and what was in front of him, including any displacement of concrete or pavement of the streets. (Id. 5.) Plaintiff did not have an impression that the streets in the City were substandard. (Id. 6.) Pier Avenue, at the 500 block, is a two-lane, asphalt-surfaced public roadway that is part of an incline in a residential neighborhood. (Id. 7.)

At about 518 Pier

Avenue, there is a manhole cover and concrete collar or hot patch, which is the circular concrete that surrounds the manhole ("subject manhole"). (Id. 8.) The subject manhole cover and the concrete collar are in the middle of the street at 518 Pier Avenue. (Id. 9.) Plaintiff alleges the subject manhole cover and/or concrete collar were a dangerous condition on September 26, 2022, because there were allegedly cracks and even broken pieces of concrete in the concrete collar surrounding the subject manhole cover. (Id. 10.)

The City employs third

party vendors, such as Nichols and IMS to update the City's pavement management or pavement management program. (Id. 14.) As part of their work, Nichols and IMS collected pavement condition data, determined the Pavement Condition Index ("PCI") (which is the measurement of the pavement's condition), reviewed the City's maintenance and rehabilitation strategies to determine future budgets, and inspected the pavement condition of the City's streets. (Id. 15.) Nichols's report disclosed to the City that Pier Avenue between 4th Street and 6th Street, which encompasses the subject manhole cover and surrounding concrete collar at 518 Pier Avenue, had a PCI of 72 (a scale of 0 to 100); thus, it was determined by Nichols to be in "Fair" condition. (Id. 17.) IMS's report disclosed to the City that the Pier Avenue, between 4th Street and 6th Street, which encompasses the subject manhole cover and surrounding concrete collar at 518 Pier Avenue, had a PCI of 72 (a scale of 0 to 100); thus, it was determined by IMS to be in "Very Good" condition. (Id. 19.)

The City has no record

of any employee from the City or any City vehicle creating or causing any crack or broken pieces of concrete in the concrete collar surrounding the subject manhole cover prior to September 26, 2022. (Id. 23.) Other than Plaintiff's claim concerning his incident, the City has received only one claim or incident report concerning cinder-block wall damage caused by a dumpster related to the

location between September 26, 2013, and September 26, 2023. (Id. 24.) The City has no record of a similar incident involving a bicycle at 518 Pier Avenue, the subject manhole cover, and/or the subject surrounding concrete collar prior to September 26, 2022. (Id. 24.)

REQUEST FOR JUDICIAL NOTICE

The City's request for judicial notice of the February 6, 2026 Minute Order is granted.

EVIDENTIARY OBJECTIONS

The City's evidentiary objections 1-7 are sustained, as there are no declarations authenticating or laying foundation for the exhibits.

The City's evidentiary objections 8-18 to the Huisinigh Declaration are sustained.

The City's evidentiary objections 19-26 to the Wilde Declaration are sustained.

INSTANT MOTION

On March 18, 2026, the City filed the instant motion for summary judgment. Plaintiff filed an opposition, and the City filed a reply.

DISCUSSION

Government Code section 835 provides:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public

entity within the scope of his employment created the dangerous condition;
or (b) The public entity had actual or constructive notice of the
dangerous condition under Section 835.2 a sufficient time prior to the injury
to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

A

“dangerous condition” is a condition of public property that “create[s] a
substantial (as distinguished from a minor, trivial or insignificant) risk of
injury when such property or adjacent property is used with due care in a
manner in which it was reasonably foreseeable that it would be used.” (Gov.
Code, § 830.2.)

“A

public entity had actual notice of a dangerous condition within the meaning of
subdivision (b) of Section 835 if it had actual knowledge of the existence of
the condition and knew or should have known of its dangerous character.” (Gov.
Code, § 835.2(a).

“A

public entity had constructive notice of a dangerous condition within the
meaning of subdivision (b) of Section 835 only if the plaintiff establishes
that the condition had existed for such a period of time and was of such an
obvious nature that the public entity, in the exercise of due care, should have
discovered the condition and its dangerous character. On the issue of due care,
admissible evidence includes but is not limited to evidence as to:

(1) Whether the existence of the condition and its
dangerous character would have been discovered by an inspection system that was
reasonably adequate (considering the practicability and cost of inspection
weighed against the likelihood and magnitude of the potential danger to which
failure to inspect would give rise) to inform the public entity whether the
property was safe for the use or uses for which the public entity used or
intended others to use the public property and for uses that the public entity
actually knew others were making of the public property or adjacent property.

(2) Whether the public entity maintained and operated
such an inspection system with due care and did not discover the condition.”

(Gov. Code, § 835.2(b).)

To

prevail on a claim for dangerous condition, a plaintiff must show that (1) the property was in a dangerous condition at the time of the injury; (2) the dangerous condition caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury incurred; and either: (4a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the condition, or (4b) the public entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it. (*Id.*; *Song X. Sun v. City of Oakland* (2008) 166 Cal.App.4th 1177, 1183; *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1129, citing *Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112.)

“A

public entity may be held liable for a ‘dangerous condition’ of public property only if it has acted unreasonably in creating or failing to remedy or warn against the condition under the circumstances described in subsequent sections.” (*Metcalf, supra*, at p. 1132.)

Here,

the City’s motion for summary judgment is brought on the grounds that the City did not owe Plaintiff a duty of care and there are no triable issues of material fact as to: (1) whether a negligent or wrongful act or omission of a City employee created the condition; or (2) the City had actual or constructive notice of the alleged dangerous condition in time to have taken measures to protect against it prior to September 26, 2022. Moreover, even if the alleged condition was dangerous, the City asserts that the condition was open and obvious such that Plaintiff could have or should have avoided it. Thus, the City concludes that Plaintiff cannot meet his burden of proof or persuasion that the City violated and is liable to him under Government Code § 835.

The

City’s relies on *Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 274-276. In *Restivo*, the Court of Appeal affirmed the trial court’s decision to grant the city’s motion for summary judgment, explaining: “the city presented undisputed evidence that the condition of its streets is overseen by the Metropolitan Transportation Commission and is evaluated every

two years both by a vendor hired by the commission and, independently, by the city. In conducting the city's inspection, employees are required to report any significant problem or concern they observe, and no reports were made about Noriel Lane. Not only did plaintiff present no contrary evidence, she also presented no evidence that the inspection schedule governed by the Metropolitan Transportation Commission is unreasonable." (Id. at p. 278.)

In opposition, Plaintiff argues that he does not need to prove that the City created the dangerous condition, only that the City had notice with sufficient time to protect against the danger but failed to do so. Plaintiff asserts that "By October 2008, the dangerous cracks had formed in the Collar such that Defendant had patched some of the cracks by then." (Opp. at p. 2; PUMF 3.) Plaintiff's evidence in support of this statement is a declaration by his expert, Monty Wilde, who bases his opinion on his review of Google Streetview images. (PUMF 3; Wilde Decl., ¶ 12, COE Ex. 1-2.)

In reply, the City emphasizes that there is no evidence that a City employee negligently created the alleged dangerous condition that allegedly existed on September 26, 2022. In response to Plaintiff's argument concerning the 2008 repatching, the City contends that, even if the City supposedly re-patched the concrete collar 18 years ago, this is not evidence that a City employee, acting within the scope of their employment, was negligent or committed a wrongful act or omission that created the dangerous condition that allegedly existed on September 26, 2022.

The City relies on *Heskel v. City of San Diego* in support of its contention that it has met its burden as the moving party on summary judgment by showing the absence of reports concerning the manhole. (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 319 [The city "showed that City workers had been in the area and did not see the condition within at least the one-year period leading up to Heskel's accident, and this creates a reasonable inference that the condition was not obvious....[t]here were no complaints within the five years preceding the date of Heskel's accident....].)

The Court finds that the City has met its burden of establishing that it is entitled to judgment as a matter of law under the evidence presented. As in *Restivo, supra*, and *Heskel, supra*,

the City has shown that there is no evidence that it created a dangerous condition or had actual or constructive notice of a dangerous condition. Notably, in support of its contention that it did not have any notice of the condition, the City provides the declaration by City Engineer Alex Nazarchuk, who declares that the City does not have any records of requests for repair regarding the subject manhole and that the manhole would have been repaired if the City had received such a request. (UMF 21-22; Nazarchuk Decl., ¶ 14.) The City also presents the declaration of Michael Mack, who declares that the City has no record of any employee from the City or any City vehicle creating or causing any crack or broken pieces of concrete in the concrete collar surrounding the subject manhole cover prior to September 26, 2022. (UMF 23-25; Mack Decl. ¶ 5.) Courts have found similar evidence to be sufficient to support the finding that summary judgment is appropriate. (Restivo, *supra*, 111 Cal.App.5th at p. 278; Hessel, *supra*, Cal.App.4th at p. 319.)

Since the City has met its burden as the moving party, the burden shifts to Plaintiff to raise a triable issue of material fact. But Plaintiff has failed to present any admissible evidence to do so. As the City points out in reply, Plaintiff relies on the speculative statements of his expert, Monty Wilde, who relies on Google maps from 2008 and opines that, based on these 2008 Google maps, cracks must have existed in October 2008 and the City must have “re-patched” the cracks in October 2008; thus, the City must have created the condition that allegedly existed 14 years later on September 26, 2022. As set forth above, the Court has sustained the City’s evidentiary objections to the evidence presented by Plaintiff. Moreover, even if the evidence were admissible, the Court agrees with the City that statements regarding re-patching the concrete collar 18 years ago does not show that the City created the dangerous conditions or had notice of same in 2022 when the incident occurred.

The Court is not persuaded by Plaintiff’s argument that the City was placed on notice of a dangerous condition by the IMS report. Nothing in the April 2022 IMS report identified or informed the City of a dangerous condition associated with the subject manhole cover and surrounding concrete collar at 518 Pier Avenue prior to the September 26, 2022 accident. (UMF 18-20; COE, Ex. D.)

Accordingly, the City’s motion for summary judgment is GRANTED.